Pankaj Bohare vs State Of Nct Of Delhi on 7 September, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 700/2022
PANKAJ BOHARE .....
Through: Mr Vikas Nagwan, Mr An
Ms Manvi Rajvasnshy, A
versus
STATE OF NCT OF DELHI ....
Through: Mr Pradeep Gahalot, AP
SI Sagar Yadav, PS-Bha
Ms Sonia A Menon, Adv.
complainant through VC
Nishchint Rawat and Mr
Kumar, Advs.
Mr Chauhan, Adv. for K
Cooperative Bank.

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 07.09.2022

1. This is an application seeking anticipatory bail in FIR No. 603/2019 dated 23.11.2019, under Sections 420/467/468/471/120-B/34 IPC, registered at Police Station-Bhajan Pura.

2. As per the FIR, the complainant Bala Devi has stated that she is the owner of property bearing No. C-484, Gali No. 20, Bhajanpura, Delhi which she purchased from one Amit Goswami. The complainant is the owner by virtue of a duly registered sale deed. It is also stated that the electricity and water meters in the said property also stand in her name. She also pays house tax for the said property. It is stated in the FIR that that the applicant along with two other people forged and fabricated the sale deed of the said property and obtained loan from Kangra Cooperative Bank to the tune of Rs. 25 lakhs. The applicant along with two other persons have re-paid about Rs. 19 lakhs towards interest and the principal, however, since there was default in making payment, the Kangra Cooperative Bank initiated proceedings under SARFAESI Act and that is when the complainant got to know regarding the fraud committed against her property. Hence, the FIR.

3. During the pendency of the FIR, Mr Nagwan, learned counsel for the applicant stated that he was ready and willing to settle the matter.

4. Ms Menon, learned counsel appearing for the complainant through video conferencing also stated that she was open to a settlement.

5. Mr Chauhan, learned counsel for Kangra Cooperative Bank was also open to a settlement.

6. With the able assistance of all the counsels, it has been settled that the applicant shall deposit a sum of Rs. 10,50,000/- with Kangra Cooperative Bank within a period of two weeks from today. On payment of Rs. 10,50,000/- with Kangra Cooperative Bank, all dues of Kangra Cooperative Bank towards property bearing No. C-484, Gali No. 20, Bhajanpura, Delhi shall be satisfied and the Bank shall have no claim towards the said property and all SARFAESI and other proceedings filed by the bank qua the above property shall be withdrawn. After making the payment, the applicant shall file a petition for quashing of the FIR which will be duly supported by the complainant and they will withdraw the civil suit based on the compromise recorded in Court today. All other cases filed between the complainant and the applicant shall stand satisfied in view of the compromise recorded today and both the parties shall cooperate in putting a quietus to all other dispute.

7. In this view of the matter, the application is allowed and it is directed that in case of arrest in FIR No. 603/2019, under Sections 420/467/468/471/120B/34 IPC, registered at Police Station-Bhajan Pura, Delhi, the applicant shall be released on bail subject to furnishing personal bond to the tune of Rs. 5,000/- to the satisfaction of the IO.

8. In case of default of payment, the protection granted to the applicant shall automatically lapse.

9. The application is allowed and disposed of in the above terms.

Copy of this order be given dasti under the signatures of Court Master.

JASMEET SINGH, J SEPTEMBER 7, 2022 sr Click here to check corrigendum, if any